

SENATE No. 1036

The Commonwealth of Massachusetts

PRESENTED BY:

William N. Brownsberger

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to liability for accidents and collisions with vulnerable road users involving large motor vehicles and trailers.

PETITION OF:

NAME:

William N. Brownsberger

DISTRICT/ADDRESS:

Suffolk and Middlesex

SENATE No. 1036

By Mr. Brownsberger, a petition (accompanied by bill, Senate, No. 1036) of William N. Brownsberger for legislation relative to liability for accidents and collisions with vulnerable road users involving large motor vehicles and trailers. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to liability for accidents and collisions with vulnerable road users involving large motor vehicles and trailers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 231 of the General Laws is hereby amended by inserting after section 140D the
2 following section:-

3 Section 140E.

4 There shall be a rebuttable presumption of negligence by the defendant in all actions to
5 recover damages for injury to the person or death of the person arising from an accident or
6 collision with a vulnerable road user as defined in section 1 of chapter 90 involving a motor
7 vehicle, trailer, semi-trailer or semi-trailer unit classified as a class 3 or above by the Federal
8 Highway Administration, with a gross vehicle weight rating of 10,001 pounds or more, provided
9 the defendant failed to equip the vehicle with a lateral protective device, convex mirrors,
10 crossover mirrors and backup cameras.